

24PSCV04214 24PSCV04214

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Case Number: 24PSCV04214 Hearing Date: July 16, 2026 Dept: G

Defendant General Motors LLC's Motion for
Summary Judgment, or in the Alternative, Summary Adjudication

Respondent: NO OPPOSITION

TENTATIVE
RULING

Defendant
General Motors LLC's Motion for Summary Judgment is GRANTED.

BACKGROUND

This
is a Song-Beverly action arising out of the purchase of an allegedly defective
motor vehicle. On December 19, 2017, plaintiff
Michael Leyba (Leyba) allegedly bought a truck manufactured by defendant General
Motors LLC (GM).

On
December 10, 2024, Leyba filed the Complaint.
On May 15, 2025, Leyba filed the operative Amended Complaint, alleging
causes of action for (1) violation of Civil Code section 1793.2, subdivision
(d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation
of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied
warranty of merchantability; and (5) [omitted].
(The court sustained a demurrer to the fifth cause of action, and Leyba
failed to amend.)

On

March 4, 2026, GM filed this motion for summary judgment, or in the alternative, summary adjudication, which is unopposed.

This

case is set for a case management conference and a hearing on the motion on July 16, 2026.

ANALYSIS

GM

seeks judgment on each of the causes of action.

For the following reasons, the court GRANTS the motion.

Legal

Standard

A

motion for summary judgment or adjudication provides “courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In a motion

for summary judgment or summary adjudication, “the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B.

Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) It must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor

Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, quoting Code Civ. Proc., § 437c, subd. (c).) A defendant moving

for summary judgment or summary adjudication “has met [their] burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.”

(Code Civ. Proc., § 437c, subd. (p)(2).)

To

establish a triable issue of material fact, the opposing party must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

Discussion

GM

argues that it is entitled to judgment on the causes of action for breach of express and implied warranties because Leyba did not present the truck for a non-recall or non-maintenance repair under warranty. The court agrees.

The

Song-Beverly Act was “designed to give recourse to the buyer of a new automobile that suffers from the same defect repeatedly.” (Krieger v. Nick Alexander Imports (1991) 234 Cal.App.3d 205, 213). “The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle after a reasonable number of attempts. ‘Attempts’ is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208, cleaned up.)

Moving

Party’s Burden

GM

meets its initial burden to demonstrate that Leyba did not present the truck for warranty repairs. Here, GM provides evidence of the truck’s transaction history, which includes details about the truck’s service and repairs; the documents demonstrate that GM performed “Chevrolet Factory Maintenance” on the truck. (UMF No. 4.) GM does not have any record of its

authorized service facility receiving the truck for warranty repairs. (UMF No. 4.)

According to both the truck's transaction history and Leyba's deposition testimony, Leyba presented the truck after the expiration of the warranty period for three additional service visits, albeit not for warranty repairs. (UMF No. 5.) Thus, GM's evidence demonstrates that Leyba did not present the truck to GM's authorized service facility for warranty repairs.

Since

GM establishes that Leyba did not present the truck to GM's authorized service facility for warranty repairs, the burden shifts to Leyba to show a triable issue of material fact that GM failed to repair the truck after a reasonable number of attempts. (See Sangster, supra, 68 Cal.App.4th at 166.)

Opposing

Party's Burden

Leyba

fails to meet her burden to establish a triable issue of material fact she presented the truck to GM's authorized service facility for warranty repairs. Here, Leyba did not file an opposition with a separate statement citing responsive evidence that creates a triable issue of material fact. (See Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215, stating that "[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.")

Thus,

the court finds there is no triable issue of material fact that GM failed to repair the truck after a reasonable number of attempts, and GM is entitled to judgment on all four remaining cause of action.

Therefore,

the court GRANTS summary judgment.